Harris County District Court

Cause No. 2024-CV-0049

Nicholas Cook, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	July 28, 2024
Plaintiff's counsel:	Brandon Barnes, Dunn & Acosta LLP

PARTIES

Plaintiff Nicholas Cook is an individual residing in Texas who was injured in a motor vehicle collision that is the subject of this petition. Defendant is an automobile insurance company authorized to write and issue personal auto policies in the State of Texas, which at all relevant times insured the at-fault driver under a policy prvoiding liability and uninsured/underinsured motorist coverage applicable to Plaintiff's claim.

FACTS

On November 28, 2023, Plaintiff was lawfully operating a motor vehicle on a public roadway in Baytown, Texas. Plaintiff was traveling straight through an intersection and then began a left turn when the vehicle of the other driver, proceeding through the same intersection in the opposite direction, struck the side of Plaintiff's vehicle. The impact was forceful and caused Plaintiff's head and neck to snap forward and backward. Plaintiff did not cause or contribute to the collision. Plaintiff promptly reported the accident to Defendant and provided all information requested under the policy.

NEGLIGENCE

The at-fault driver owed a duty to exercise ordinary care, to keep a proper lookout, and to yield the right of way as required by Texas law. The at-fault driver breached that duty by failing to yield to Plaintiff's vehicle, failing to keep a proper lookout, and driving at a speed unsafe for the conditions. That negligence was the proximate cause of the collision and of Plaintiff's injuries. Defendant, as the insurer, is liable under the policy for the covered damages resulting from its insured's negligence and has failed to make a reasonable settlement offer despite a clear liability picture.

DAMAGES

As a direct result of the collision, Plaintiff suffered whiplash injuries to the neck and upper back, with ongoing pain, stiffness, headaches, and limited range of motion. Plaintiff has incurred medical expenses for emergency care, imaging, physical therapy, and continuing treatment, and has lost time from work. Plaintiff also suffers physical pain, mental anguish, and diminished enjoyment of life. Plaintiff seeks recovery of all damages allowed by Texas law, in the amount of $77,000.00, together with pre-judgment and post-judgment interest, costs of court, and such other relief as the Court deems just.